



Forestry Act 1979

1979 CHAPTER 21

An Act to re-state the power of the Forestry Commissioners to make grants and loans; and to provide for the metrication of enactments relating to forestry and forest lands.
[29th March 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Forestry Commissioners may, with Treasury Finance for approval, make grants and loans to owners and lessees of land forestry for and in connection with the use and management of the land for forestry purposes.

(2) Any such grant or loan shall be made out of the Forestry Fund and be on such terms and conditions as the Commissioners think fit.

2.—(1) The Forestry Act 1967 is amended as shown in Schedule Metrication of 1 to this Act (the amendments being to substitute metric units of measurements, measurement throughout the Act).
1967 c. 10.

(2) The Forestry Commissioners may by regulations amend enactments to which this subsection applies so as to substitute—

- (a) for any reference to a number of acres, a reference to a number of hectares;
- (b) for any reference to a number of feet, a reference to a number of metres; and
- (c) for any requirement that plans be made on the scale of 3 chains to an inch, a requirement that they be made on the scale of 1 : 2,500;

and for this purpose "number" includes a number less than unity.

(3) Subsection (2) applies to any enactment contained in an Act (whether public general, local or private) relating to particular forest lands in England and Wales.

(4) Before making any such regulations, the Commissioners shall consult such persons and organisations as appear to them to be representative of interests likely to be affected.

(5) The regulations—

(a) may contain such incidental, supplementary and consequential provisions (if any) as the Commissioners consider expedient; and

(b) shall be made by statutory instrument subject to annulment by resolution of either House of Parliament.

Citation, etc.
1967 c. 10.

3.—(1) This Act may be cited as the Forestry Act 1979; and the Forestry Act 1967 and this Act may be cited together as the Forestry Acts 1967 and 1979.

(2) The Forestry Act 1967 is repealed to the extent specified in Schedule 2 to this Act.

(3) This Act comes into force at the expiration of two months from the date on which it is passed.

(4) This Act does not extend to Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 2(1).

METRICATION OF 1967 ACT

In section 9 (requirement of felling licence; exemptions from that requirement)—

in subsection (2)(a), for “ 3 inches ” and “ 6 inches ” substitute respectively “ 8 centimetres ” and “ 15 centimetres ”;

in subsection (3)(a), for “ 4 inches ” substitute “ 10 centimetres ”;

in subsection (3)(b), for “ 825 cubic feet ” and “ 150 cubic feet ”, substitute respectively “ 30 cubic metres ” and “ 5·5 cubic metres ”;

in subsection (5)(a), for “ 3 inches ” and “ 4 inches ”, substitute respectively “ 8 centimetres ” and “ 10 centimetres ”, and for “ 825 cubic feet ” and “ 150 cubic feet ” substitute respectively “ 30 cubic metres ” and “ 5·5 cubic metres ”;

in subsection (5)(b) for “ 6 inches ” substitute “ 15 centimetres ”;

in subsection (5)(c) for “ 825 cubic feet ” and “ 150 cubic feet ” substitute respectively “ 30 cubic metres ” and “ 5·5 cubic metres ”; and

in subsection (6) for “ five feet ” substitute “ 1·3 metres ”.

In section 43(1) (satisfaction of contingent liability to Crown Estate), for “ five acres ” substitute “ 2 hectares ”.

SCHEDULE 2

Section 3(2).

REPEALS IN 1967 ACT

Section 4.

In section 9(6), the words from “ and references to the cubic content ” onwards.